



Calfus POSH Policy

Version: 2.0

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1.1 INTRODUCTION

This is the policy of Calfus Technologies India Pvt Ltd for prevention of sexual harassment at the workplace.

All employees are expected to uphold the highest standards of ethical conduct at the workplace and in all their interactions with business (all) stakeholders. This means that employees have a responsibility to:

- Treat each other with dignity and respect.
- Follow the letter and spirit of law.
- Refrain from any unwelcome behavior that has sexual connotation (of sexual nature);
- Refrain from creating hostile atmosphere at workplace via sexual harassment; and
- Report sexual harassment experienced and/or witnessed to appropriate authorities and abide by the complaint handling procedure of the Organization.

This policy has been framed in accordance with the provisions of “The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013” (hereinafter “the Act”) and related rules. While the Act specifically addresses the protection of women, this policy extends its scope to uphold the dignity and rights of all individuals, regardless of gender, in alignment with principles of equality and non-discrimination.

Accordingly, this policy incorporates all key aspects of the Act, and for any further clarification, reference shall be made to the Act and related provisions.

If any aspect relating to sexual harassment is not explicitly covered in this policy but is provided for by applicable laws, those laws will take precedence. In case of any conflict between the policy and the law, the law shall prevail.

This policy provides protection against sexual harassment in the workplace, ensuring the prevention and redressal of complaints of sexual harassment and matters related to the dignity and rights of all individuals, irrespective of gender.

1.2 SCOPE & RESPONSIBILITY

This policy extends to all employees of the organization and is deemed to be incorporated into the service conditions of all employees in India.

"Employee" includes any person employed at the workplace for any work on a regular, temporary, ad-hoc, or daily wage basis, either directly or through an agent, including a contractor, with or without the knowledge of the principal employer. It also encompasses trainees, apprentices, interns, consultants, contract workers, probationers, or volunteers, regardless of whether they receive remuneration or work on a voluntary basis.

- This Policy takes complete cognizance of the latest legislation by the Government of India “The Sexual Harassment at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (the “Act”) and its rules notification published on 9 December 2013. This Act is to

provide protection against Sexual Harassment of women at workplace and for the prevention and redressal of complaints of Sexual Harassment and for the matters connected therewith or incidental thereto. In respect of The Transgender Act, 2019, Woman includes transgender person who identifies as a woman.

- This Policy comes into effect immediately. Individual managers are responsible for ensuring that this policy is applied within their own area.
- The issuer of this policy is HR Department. HR Department has the responsibility for ensuring the maintenance, regular review and update of the policy. Any queries on the application or interpretation of this policy must be discussed with HR Department.
- Further, any complaints received under this policy will be handled by the Internal Committee of the respective location, as per the guidelines provided.

1.3 DEFINITIONS

Sexual harassment: May occur not only where a person uses sexual behaviour to control, influence or affect the career, salary or job of another person, but also between co-workers. It may also occur between an employee and someone that employee deals with in the course of his/her work who is not employed by the Organisation.

“Sexual Harassment” includes any one or more of the following unwelcome acts or behaviour (whether directly or by implication), but not limited to:

1. Any unwelcome sexually determined behaviour, or pattern of conduct, that would cause discomfort and/or humiliate a person at whom the behaviour or conduct was directed namely:
 - Unwelcome sexual advances involving verbal, non-verbal, or physical conduct, whether implicit or explicit.
 - Physical contact and advances including (but not limited to) touching, stalking, sounds which have explicit and /or implicit sexual connotation/overtones, molestation.
 - Teasing, Voyeurism, innuendos and taunts with implicit sexual connotation, physical confinement and /or touching against one’s will.
 - Demand or request for sexual favours.
 - Sexually coloured remarks or remarks of a sexual nature about a person's clothing or body.
 - Display of pictures, signs etc. with sexual nature/ connotation/ overtones in the work area and work-related areas.
 - Showing pornography, gestures, making or posting vulgar / indecent / sexual pranks, teasing, jokes, demeaning or offensive pictures, cartoons or other materials through email, SMS, MMS, instant messaging, social media, etc.
 - Repeatedly asking to socialize during off-duty hours or continued expressions of sexual interest against a person’s wishes.
 - Giving gifts or leaving objects that are sexually suggestive.
 - Eve teasing, innuendos and taunts, physical confinement against one’s will or any such act likely to intrude upon one’s privacy.
 - Persistent watching, following, contacting of a person; and
 - Any other unwelcome physical, verbal or non-verbal conduct of sexual nature.

An alleged act of sexual harassment, whether committed during or outside of office hours, falls under the purview of this policy as per the workplace definition defined under the Section 2(o) of Prevention of Sexual Harassment (POSH) Act, 2013. Furthermore, it is essential to note that the determination of whether harassment has occurred does not depend on the intention of the individuals involved, but rather on the impact it has on the aggrieved person.

2. **Aggrieved Person:** In relation to a workplace, [any person (woman, man or transgender)] of any age, whether employed or not, who alleges to have been subjected to any act of sexual harassment by the respondent.
3. **Complainant:** Any aggrieved person who makes a complaint alleging sexual harassment under this policy.
4. **Respondent:** A person against whom a complaint of sexual harassment has been made by the Aggrieved person under this policy. The Respondent needs to be an employee of the Organisation.
5. **Employee:** As per Section 2(f) of the POSH Act, 2013, an **employee** is defined as any person employed at the workplace, for any work on a regular, temporary, ad-hoc, or daily wage basis, either directly or through an agent, including a contractor, with or without the knowledge of the principal employer, whether for remuneration or not, or working on a voluntary basis or otherwise, whether the terms of employment are express or implied. This includes a co-worker, contract worker, probationer, trainee, apprentice, or any other person called by any such name.
6. **Internal Committee (known as IC):** As per Section 4 of the Prevention of Sexual Harassment (POSH) Act, 2013, an Internal Committee (IC) refers to the committee constituted within an organization to address the prevention, redressal, and resolution of sexual harassment complaints at the workplace. Internal Committee (IC) is tasked with investigating complaints, providing a fair hearing, and ensuring that appropriate action is taken in accordance with the provisions of the Act.
7. **Workplace:** As per Section 2(o) of the Prevention of Sexual Harassment (POSH) Act, 2013, the term **workplace** is defined to include any office, premises, or place where an employee works, including a department, organization, undertaking, establishment, enterprise, institution, or any other place visited by the employee during the course of employment. This definition also extends to cover any place that is in the nature of a work-related gathering, event, or informal setting where employees are present, whether or not it is part of the formal office or employment premises. The term aims to ensure that the workplace includes not only physical locations but also any environment where employees engage in activities related to their work.
8. **Employer:** As per Section 2(e) of the Prevention of Sexual Harassment (POSH) Act, 2013, the term **employer** is defined as the person responsible for the management, supervision, or

control of the workplace. This includes the head of the organization, company, establishment, or institution, and may also extend to an individual or an entity who owns, controls, or is responsible for the workplace. The employer is responsible for ensuring the prevention, prohibition, and redressal of sexual harassment, and must implement the provisions of the POSH Act, including the formation of the Internal Committee, conducting awareness programs, and ensuring that complaints are addressed in a timely and effective manner.

1.4 ORGANIZATION POLICY STATEMENT

Calfus Technologies maintains a strict zero-tolerance stance towards all forms of sexual harassment. We are committed to creating and sustaining a work environment free from any form of sexual misconduct. To uphold this commitment, Calfus has established an Internal Committee (IC) responsible for addressing and resolving all complaints related to sexual harassment, in accordance with the provisions of the Prevention of Sexual Harassment (POSH) Act, 2013. Calfus takes proactive measures to prevent, prohibit, and take appropriate action on any instances of sexual harassment.

1.5 RESPONSIBILITY OF EMPLOYEES

All employees of Calfus Technologies have an obligation to uphold the rights, dignity, and respect of their colleagues, and to contribute to maintaining a work environment free from harassment. This responsibility includes, but is not limited to, the following actions:

- a) Refraining from engaging in or encouraging any behavior that constitutes sexual harassment, either directly or indirectly.
- b) Actively supporting colleagues in rejecting unwelcome behavior and helping to address incidents of harassment in a constructive and respectful manner.
- c) Not giving in to or participating in **quid pro quo** harassment, where submission to sexual advances is implied as a condition for employment-related benefits or decisions. Any such offer or demand should be immediately reported to the Internal Committee (IC).
- d) Acting as a witness, if called upon, and providing truthful, accurate, and relevant information in the event the affected individual chooses to file a formal complaint.
- e) Cooperating fully with the Internal Committee (IC) during any investigation or inquiry related to sexual harassment, maintaining objectivity, and ensuring a fair and impartial process.
- f) Respecting confidentiality by not disclosing any information related to a sexual harassment complaint, investigation, or hearing, except as required by the process or the law.
- g) Refraining from creating a hostile work environment through the spreading of rumors, gossip, or engaging in any other disruptive or disrespectful behavior that could undermine the dignity or safety of any individual.
- h) Promoting and fostering a culture of mutual respect, inclusion, and accountability, and being proactive in identifying and addressing behaviors that could lead to harassment.

Employees are expected to demonstrate the highest level of integrity and professionalism in their interactions, ensuring that the workplace remains a safe and inclusive environment for everyone.

Failure to comply with these responsibilities may result in disciplinary action as per the organization's policies.

1.6 WHO CAN COMPLAIN?

A complaint can be filed by an aggrieved person in writing as per the requirements as given under. The Act allows the following to file a complaint:

[Aggrieved person- Though the Act only protects women (including trans women, the Organization policy extends its protection to all genders.]

- If the Aggrieved person is unable to make a complaint on account of her/his physical incapacity, a complaint may be filed by:
- her relative or friend; or
- her co-worker; or
- an officer of the National Commission for Women or State Women's Commission; or
- any person who has knowledge of the incident, with the written consent of the Aggrieved person

If the Aggrieved person is unable to make a complaint on account of her/his mental incapacity, a complaint may be filed by:

- Her/his relative or friend; or
- a special educator; or
- a qualified psychiatrist or psychologist; or
- the guardian or authority under whose care she is receiving treatment or care; or
- any person who has knowledge of the incident jointly with the Aggrieved person's relative or friend or a special educator or qualified psychiatrist or psychologist, or guardian or authority under whose care she/his is receiving treatment or care
 - In case of Complainant's death: Any person with knowledge of incident with written consent of her/his legal heir
 - In case complainant is unable to file the complaint for some other reason: By any person who has knowledge of the incident with her/his written consent.
 - In case complainant is unable to file the complaint for some other reason: By any person who has knowledge of the incident with her/his written consent.

1.7 ESSENTIALS OF A COMPLAINT

1. Written Format:

The complaint must be filed in writing. It can be submitted either in the prescribed format provided by the organization or any other written form that adequately conveys the grievance.

2. **Details of the Incident:**
The complaint should include specific details about the alleged incident(s), such as:
 - Date(s) and time(s) of occurrence.
 - Location(s) of the incident.
 - Nature of the unwelcome act(s) or behavior.
 - Description of the context in which the incident occurred.
3. **Timeline for Filing:**
As per Section 9 of the Act, the complaint must be submitted within three months of the date of the incident. If the harassment was continuous, the three-month period begins from the last occurrence.
 - This timeline may be extended by the Internal Committee (IC) by an additional three months if sufficient reasons are provided for the delay.
4. **Identification of the Respondent(s):**
The complaint should include the name(s) and, if possible, designation(s) of the person(s) against whom the complaint is being made.
5. **Impact on the Aggrieved Person:**
The complaint should describe how the incident(s) affected the complainant, such as emotional distress, impact on work performance, or the creation of a hostile work environment.
6. **Supporting Evidence (if available):**
While not mandatory, any supporting documentation, emails, messages, or evidence relevant to the allegations should be submitted along with the complaint to assist in the investigation.

These essentials ensure that the Internal Committee has sufficient information to conduct a fair and thorough investigation into the allegations. The process also respects the rights of the aggrieved person and ensures compliance with the provisions of the POSH Act, 2013.

1.8 WHO TO COMPLAIN TO?

As per Section 4 of the Prevention of Sexual Harassment (POSH) Act, 2013, an aggrieved person can file a complaint with the Internal Committee (IC), which is a body constituted within the organization to address complaints of sexual harassment. The following outlines who to complain to under the Act:

Internal Committee (IC):

- Every organization with 10 or more employees is required to constitute an Internal Committee.
- The IC is responsible for receiving complaints, conducting inquiries, and recommending appropriate actions based on its findings.

Local Committee (LC):

- In workplaces with fewer than 10 employees or in cases where the complaint is against the employer, the complaint can be filed with the Local Committee (LC).
- The LC is established by the appropriate district officer, as defined under Section 5 of the Act.

Jurisdiction of the Complaint:

A complaint can be filed with the IC or LC where:

- The incident occurred.
- The workplace of the aggrieved person or respondent is located.
- The aggrieved person or respondent resides.

An appendix of the IC members is attached herein.

- Amit Bansal- Internal Member- amit.bansal@calfus.com
- Mangesh Hardikar- Internal Member- mangesh.hardikar@calfus.com
- Snehal Dubey -Presiding Officer- snehal.dubey@calfus.com
- Jacintha Jayachandran- Internal Member- jacintha.jayachandran@calfus.com

An email can be sent to the Internal Committee (IC) to POSH@calfus.com

The complaint can also be made to the External member of the committee. The detail of the external member is as follows:

- Aisha Singh (External member)- externalcommitteeposh@gmail.com

If the Complaint is against the employer, the complaint can be addressed to the Local Complaints Committee, which sits at: Calfus Technologies India Pvt. Ltd. , 35 Crescent Bay, Balewadi, Pune – 411045

1.9 INTERNAL COMMITTEE

In compliance with the Prevention of Sexual Harassment (POSH) Act, 2013, and the Organisation's policy of maintaining a gender-neutral and inclusive work environment, an Internal Committee (IC) has been constituted for each administrative unit or office of the Organisation to prevent instances of sexual harassment and to receive and address complaints effectively. The details of the IC are communicated to all individuals associated with the workplace.

Constitution of the Internal Committee

The IC at each location is constituted as per Section 4 of the POSH Act, 2013 and includes the following members:

- Presiding Officer: A person of the gender minority employed at a senior level in the organization or workplace (e.g., a woman in compliance with the Act but extended to ensure inclusivity as per organizational policy).
- Employee Members: At least two members from amongst employees, who are committed to the cause of gender inclusivity, have experience in social work, or possess legal knowledge.
- External Member: One external member from a non-governmental organization or association, or a person familiar with issues relating to sexual harassment.
- Diversity Requirement: At least one-half of the total members nominated must be from individuals identifying as women or other underrepresented gender groups to ensure balanced representation.

Powers of the Internal Committee

The IC is vested with powers equivalent to those of a Civil Court under the Code of Civil Procedure, 1908 for:

- Summoning and enforcing the attendance of parties and witnesses.
- Examining witnesses under oath.
- Requiring the discovery and production of relevant documents.

Additionally:

- The IC may terminate proceedings if the complainant fails, without sufficient cause, to appear for three consecutive hearings, provided the IC gives the complainant 15 days prior written

notice.

- The IC may issue an ex-parte order if the respondent fails, without sufficient cause, to appear for three consecutive hearings, provided the IC gives the respondent 15 days prior written notice.

The IC is responsible for the following tasks:

- a. Receiving and addressing complaints of sexual harassment at the workplace.
- b. Conducting fair and impartial inquiries into complaints as per the procedures outlined in the POSH Act and the organisation's policies.
- c. Submitting findings and recommendations to the employer for appropriate action.
- d. Collaborating with the employer to implement preventive and corrective measures.
- e. Maintaining strict confidentiality throughout the complaint-handling and inquiry process, as mandated by the POSH Act.
- f. Submitting annual reports to the employer and district officer in the prescribed format, as required under Section 21 of the POSH Act, 2013.
- g. Collaborating with Human Resources or the relevant department to ensure regular training, sensitization, and communication initiatives regarding sexual harassment prevention.
- h. Promoting the organisation's values of diversity, inclusion, and respect for all employees, regardless of gender identity or orientation.
- i. Demonstrating the principles of equality and respect by ensuring that IC members "walk the talk" and lead by example in their interactions.

This policy and committee structure align with the legal mandates of the POSH Act while extending protections and responsibilities to ensure a safe, inclusive, and respectful workplace for all genders.

1.10 REDRESSAL MECHANISM

The Prevention of Sexual Harassment (POSH) Act, 2013, provides two mechanisms for redressal:

Informal Resolution Procedure Through Conciliation

- Upon receiving a complaint, before initiating a formal inquiry, the Internal Committee (IC) may facilitate conciliation between the complainant and the respondent, provided such a process is specifically requested by the aggrieved person.
- The request for conciliation must be made in writing by the complainant, and the IC shall retain this written request as part of the records.
- No monetary settlement shall be used as a basis for conciliation.
- If a settlement is reached, the IC shall document the terms of the settlement and submit the same to the employer for appropriate action.
- It is mandatory to obtain the consent of both parties before initiating the conciliation process.
- In cases where the respondent claims the complaint is malicious, they may choose to proceed directly with the formal inquiry process instead of conciliation.

Formal Resolution Procedure Through Formal Inquiry

The IC will proceed with a formal inquiry under the following circumstances:

- If the aggrieved person does not request conciliation.
- If conciliation efforts do not result in a settlement.
- If the complainant notifies the IC that the terms of the settlement reached through conciliation have not been adhered to by the respondent.

As per the Act, any complaint unresolved through conciliation shall be addressed through the formal redressal mechanism outlined below.

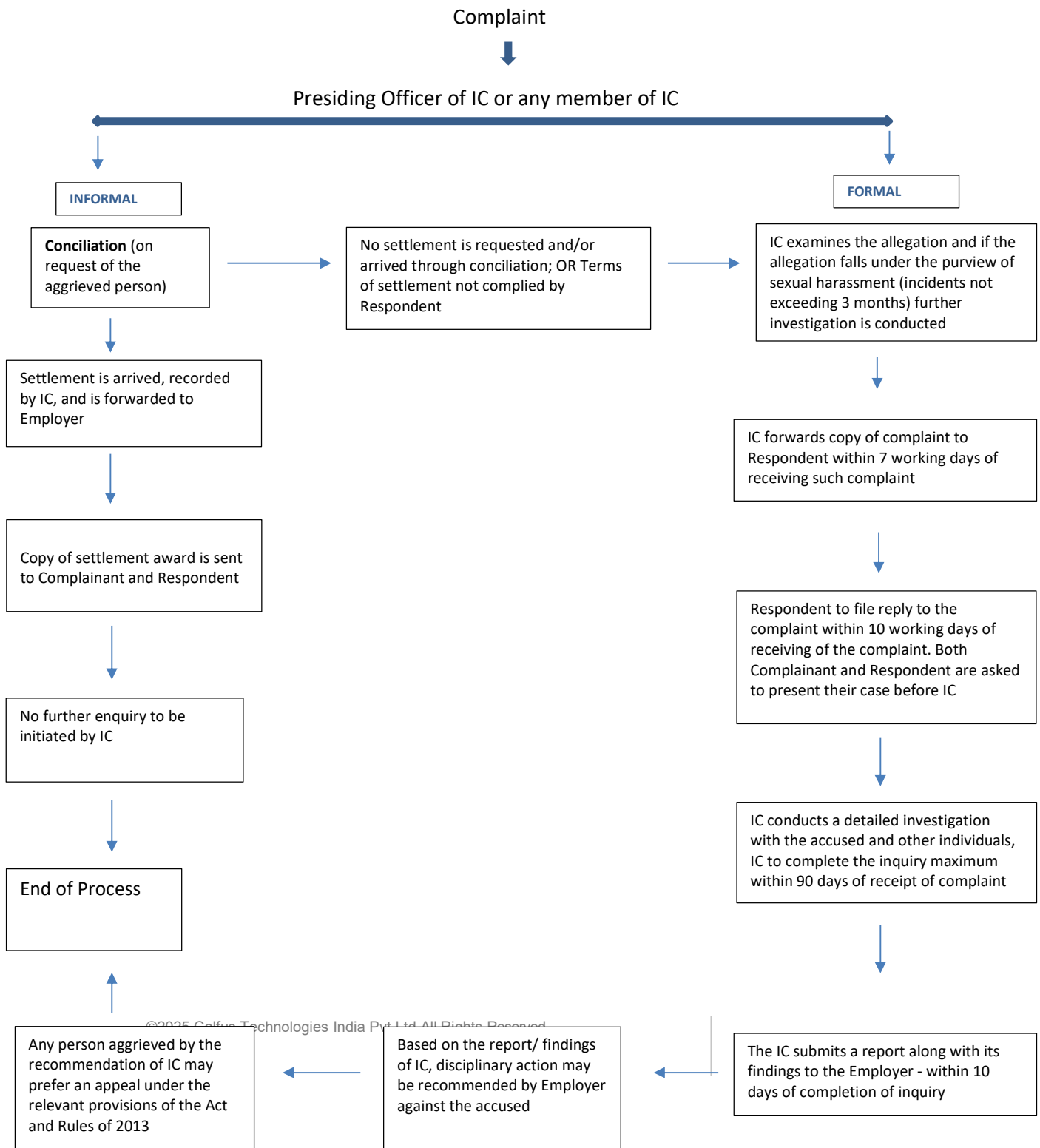
Lodging a complaint

- An aggrieved person may file a complaint of sexual harassment at the workplace in writing with the IC.
- The complaint must be filed within **three months** of the incident or the last occurrence of the alleged harassment. The IC may extend this period by an additional three months if the aggrieved person provides sufficient reasons for the delay, which the IC must record in writing.
- If the aggrieved person is unable to submit a written complaint, the **Presiding Officer** or any member of the IC shall provide reasonable assistance to ensure the complaint is documented in writing.
- Complaints can be submitted:
 - In writing to any IC member.
 - Electronically via the organization's dedicated POSH email ID (e.g., POSH@calfus.com).
 - Physically to any IC member at the workplace.

Confidentiality and Non-Disclosure Agreement (NDA)

- In accordance with **Section 16 of the POSH Act, 2013**, confidentiality must be strictly maintained throughout the inquiry process.
- All parties involved in the incident, including the complainant, respondent, witnesses, and IC members, will be required to sign a **Non-Disclosure Agreement (NDA)** to ensure compliance with confidentiality provisions.
- Disclosure of details of the inquiry, the identity of the parties, or any related information is strictly prohibited, except as required by law or for implementation of the IC's recommendations.

1.11 REDRESSAL OF SEXUAL HARASSMENT



1.12 INTERIM RELIEF

During the pendency of an inquiry, the complainant is entitled to request interim relief from the Internal Committee (IC) in writing. Upon receiving such a request, the IC will deliberate internally and decide on the appropriate relief, taking into consideration the circumstances and in accordance with the provisions of the law and the organization's policy.

1.13 RECOMMENDATION IF FOUND GUILTY

If the respondent is found guilty of sexual harassment, the Internal Committee (IC) may recommend disciplinary action in accordance with the provisions of the Prevention of Sexual Harassment (POSH) Act, 2013 and the organization's policies. The recommendations may include, but are not limited to:

- Written apology by the respondent to the complainant.
- Warning or reprimand to the respondent.
- Community service or counseling sessions for the respondent.
- Censure or formal reprimand.
- Withholding promotion or salary increment.
- Suspension for a specified period.
- Termination of employment or contract.
- Any other action deemed appropriate based on the severity of the offense and in alignment with organizational policies.

1.14 MALICIOUS COMPLAINT

As per Section 14 of the Prevention of Sexual Harassment (POSH) Act, 2013, if the Internal Committee (IC) concludes that the allegation made by the complainant is malicious, or that the complainant or any other person involved in the complaint knowingly made a false statement or produced forged or misleading documents, the IC may recommend appropriate action to the employer against the individual making the malicious complaint. The action to be taken against the person making a malicious complaint may include disciplinary measures as prescribed under the organization's policies and as provided by the law for cases where the complaint is substantiated. Such actions may include, but are not limited to, suspension, termination, or other penalties.

While determining malicious intent, the IC must ensure that the inability to substantiate a complaint does not automatically imply malicious intent. Malicious intent should be clearly established through a separate and thorough inquiry, ensuring that any decision is based on factual evidence and due process.

The purpose of this provision is to prevent the misuse of the complaint process and to protect both the complainant and respondent from unjust actions.

1.15 CONFIDENTIALITY

As per Section 16 of the Prevention of Sexual Harassment (POSH) Act, 2013, the identity, addresses, and any personal details of the complainant, respondent, witnesses, and all information related to the conciliation or inquiry proceedings, including the recommendations made by the Internal Committee (IC) or Local Complaints Committee (LCC) and the actions taken by the employer or District Officer, shall be kept strictly confidential. Such information must not be disclosed, published, communicated, or made known to the public, press, or media in any manner.

In addition, any party involved in the complaint process, including the complainant, respondent, witnesses, or any member of the IC, is prohibited from discussing or disclosing any details of the case to anyone else within or outside the organization. This includes, but is not limited to, verbal discussions or written communication. Any breach of this confidentiality, including unauthorized disclosure to any external parties or within the organization, shall be subject to disciplinary action, including suspension, termination, and a fine of Rs. 5,000/- or more, depending on the severity and impact of the breach. The organization retains the right to determine the fine amount based on the severity of the case.

Furthermore, the violation of the Non-Disclosure Agreement (NDA) signed by the parties involved in the complaint process will result in similar repercussions. The breach of confidentiality will be treated seriously, and appropriate action will be taken to uphold the integrity of the complaint process.

However, if the disclosure of confidential information is required by an order from a court, a government agency, or a regulatory authority, or in response to a summons or document request related to pending litigation or an appeal, such disclosure shall not be considered a breach of confidentiality. The information disclosed shall be limited to what is strictly necessary and lawful for the legal proceedings.

1.16 APPEAL

As per Section 18 of the Prevention of Sexual Harassment (POSH) Act, 2013, any party who is not satisfied or is further aggrieved by the implementation or non-implementation of the recommendations made by the Internal Committee (IC) may file an appeal to the Appellate Authority.

The appeal must be submitted within 90 days from the date of the recommendations. If the appeal is not resolved by the Appellate Authority, or if the aggrieved party remains dissatisfied, they may approach the appropriate court with relevant jurisdiction.

Timeline for handling sexual harassment complaints as per the POSH Act and the organization's policy:

Stage	Timeline	Details
Filing the Complaint	Within 3 months from the date of the incident	The complaint must be filed within 3 months from the date of the incident or last incident.
Acknowledgement of Complaint	Within 7 days from the receipt of the complaint	The Internal Committee (IC) must acknowledge the complaint within 7 days of receiving it.
Conciliation Process (If Requested)	Within 15 days from the request	If the complainant requests conciliation, the process must be completed within 15 days.
Inquiry Process	Within 90 days from the date of receiving the complaint	If conciliation is not pursued, the inquiry must be completed within 90 days from the complaint.
Interim Relief Request	Within 7 days of the request	The IC must decide on interim relief within 7 days of the request from the complainant.
Recommendations and Action	Within 60 days of the inquiry completion	The employer must act upon the IC's recommendations within 60 days of the inquiry conclusion.
Appeal	Within 90 days from the date of the recommendations	The complainant or respondent may appeal to the Appellate Authority within 90 days of the recommendation.